

in the proper mode, or liable in respect of purchase-money paid by them by direction of the tenant for life to any person joining in the conveyance as a conveying party, or as giving a receipt for the purchase-money, or in any other character, or in respect of any other money paid by them by direction of the tenant for life on the purchase, exchange, partition, or lease.

Under this section the trustees are under no liability if they stand by and take no active part while the tenant for life is exercising his powers, but it is conceived that the indemnity given by this section to the trustees only holds good so long as they have not actual notice that the tenant for life is acting fraudulently or even improperly. At any rate, trustees, who with the knowledge that the tenant for life is committing a fraud upon his powers take no active steps for the protection of the remaindermen, relying on this section, would be acting most imprudently, and would have little reason to complain if they were made personally liable for any loss arising from their negligence.

Trustees must see that conveyance is in the proper form. — It will be observed that trustees in order to have the benefit of this section where land is brought into the settlement upon a purchase, exchange, partition, or lease, must see that the conveyance purports to convey the land in the proper mode, but they are not bound to do more than take care that the deed on the face of it is properly drawn, and is duly executed by the conveying parties, and that the person to whom the purchase-money is paid by the direction of the tenant for life properly joins in the conveyance.

27. Differences between tenant for life and trustees. — By sect. 44, if at any time a difference arises between a tenant for life and the trustees of the settlement, respecting the exercise of any of the powers of the Act, or respecting any matter relating thereto, the Court may, on the application of either party, give such directions respecting the matter in difference, and respecting the costs of the application, as the Court thinks fit.

28. By sect. 55, the powers conferred by the Act are exercisable from time to time, and in exercising the powers the